

SUSTAINING COLLECTIVE BARGAINING AND ENHANCING DISPUTE RESOLUTION

Department of Public Service and Administration (DPSA)

03 – 05 March 2026



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INTRODUCTION

Theme: “Collective Bargaining in the Digital Era: Building Trust, Managing Disputes, Ensuring Good Governance”

- ☐ The theme itself presents the need for government to look at collective bargaining from the human element to a digitalised approach without losing the social contract between employers, employees and organised labour.
- ☐ It dictates a transition into a digitalised era whilst investing in building trust in a virtual world and a single source of data, digital inclusion and enhanced communication from emails into meaningful engagements in hybrid or remote environments .
- ☐ Digital era presents an opportunity to detect grievances early before they are disputes unlike the current status of face to face , availability of parties to a physical meeting , financial implications into travelling etc.
- ☐ We therefore need to look at as a continuous ,tech-enabled ecosystem which will require us to move from being reactionary, paper based to a systematic approach in sustaining collective bargaining.

Sustaining Collective Bargaining and Enhancing Dispute Resolution

- Collective bargaining and dispute resolution are foundational to effective labour relations within the PSCBC.
- The Employer remains central and key in terms of assisting the bargaining processes and the promotion of sound labour peace and stability.

Sustainability of Collective bargaining cont...

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EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
❑ Collective bargaining is looked at as vehicle for wage negotiations and very reactionary instead of broader employment issues.	❑ Collective bargaining season adopted and has worked, but needs to be adjusted. ❑ Collective bargaining season has been adopted to align outcomes of bargaining to budgets ❑ Multi-term approach adopted has worked thus allowing parties space to deal with other government work and create stability.	❑ Consolidate these and enhance them. ❑ Adjust the negotiations outcomes to November to give parties enough time for mandating processes ❑ (May to November – 6 months) ❑ Institutionalize Multi Year Agreement for sustainable collective bargaining to a period of 5 years.
❑ Positional Bargaining by parties ❑ Strict and centralised bargaining system.	❑ Capacity Building programs by PSCBC have been implemented and trust is improving.	Digital training to be conducted to prepare parties for effective negotiations (automated data)



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Sustainability of Collective bargaining cont.....

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EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
The remote workplace ❑ Workers are geographically dispersed, weakening the “social glue” and solidarity needed for collective action	Low effectiveness : ❑ Traditional on-site recruitment and “breakroom organizing” are failing to reach remote and platform workers	Building of digital clubhouse ❑ Algorithmic negotiations and mandating to be introduced in order to be able to audit decision –making based on the automated data ❑ Parties to consider different encrypted apps to foster virtual solidarity.
❑ Collective bargaining is turned into pleading because the strikes becomes a weapon of destructing/disturbing services and therefore compromising the purpose of collective bargaining.	❑ Joint capacity building for parties at PSCBC to promote a win/win approach to collective bargaining.	❑ Moving away from individualism (labour or employer position) to a systematic negotiations. Eg. If the system deactivates one party, the courts will not be used but the system will need data to be captured to justify the deactivation or an automated decision.



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Sustainability of Collective bargaining cont...

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EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
❑ Wage gaps and inflation	❑ Remuneration policy for public service is being reviewed and before PSCBC. Matter should be taken forward to review the policy	❑ Finalise the Personnel Expenditure Review for public service before PSCBC ❑ Transparency on the budget and the lack of it prior to the negotiations
❑ Strict and centralised bargaining system	❑ The current collective bargaining system is highly effective as a conflict – management tool .	❑ A process of reviewing the current system including the Constitution to enhance new system in collective bargaining governance
❑ Mandates cut across different sectors that are not covered by the laws. Eg independent contractors and public entities with no formalised collective bargaining system.	❑ The current pillars of collective bargaining are the bargaining councils, the CCMA which are Resilient but rigid.	❑ Review contours of current collective bargaining systems in the public sector and come up with new ones. ❑ Incorporate some of the entities into scope of PSCBC to institutionalise collective bargaining.



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Sustainability in collective bargaining cont....

EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
Delays finalising matters on the agenda of the Council (eg Picketing Rules, Disciplinary Code, etc)	Resolution 3 of 2017 and Constitution provide for the development of timelines to manage collective bargaining but needs to be improved	Implement resolutions /constitution for efficiency in collective bargaining and for its integrity
Better coordination from labour party	Labour caucuses to consolidate demands and approach but still need improvement	Institutionalise labour caucuses for parties for better planning for operations of PSCBC



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Sustainability in collective bargaining

EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
☐ Even though collective bargaining system effective, it is decreasingly effective as a tool for broad-based economic transformation.	Reliance is based on the approval by NT	Collective bargaining should start looking at non -monetary negotiations



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Enhance Dispute Resolution

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EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
☐ Impartiality of commissioners creating more disputes at high courts	☐ Current mechanisms still needs to be looked at	☐ Better vetting of Awards for quality and legality to avoid long litigation processes
	☐ The current existing mechanisms are procedurally strong but substantively challenged as they are not economy based. Eg high settlement awards and cost that do not consider the economy.	☐ An assessment of all awards to identify the gaps
☐ There is a need to optimise technology to enhance dispute resolution (arbitrations)	☐ Even though PSCBC is mainly on virtual platforms, some sectors still have physical hearings. However, we must create the right balance to promote access and social justice. ☐ In Dispute Resolution, the shift to virtual hearing which was fully operational in 2025, has increased accessibility.	☐ The employer to consider full implementation of virtual hearings as it has proven to be cost effective (why fix what is not broken)



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Enhance Dispute Resolution

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EMERGING CHALLENGES	ASSEMENT OF EXISTING MECHANISMS AND EFFECTIVENESS	STRATEGIES
☐ Current Electronic System for Dispute Resolution is not fully utilised by Applicants	☐ PSCBC has a new electronic system for DR and parties have access to it	☐ Partner with unions increase optimal utilisation of the system to enhance DR
☐ Lack of integration in Dispute Resolution in the Public Service across sectors	☐ Different systems on DR Exist and are not integrated for better DR	☐ Explore integration of DR Systems for better dispute management ☐ Fully implement the System
☐ Employer still loses a loses a lot of cases	☐ Implementation support and workshops on collective agreements are conducted but need to be improved	☐ Use technology to for awareness on implementation of specific collective agreements using virtual platforms for better attendance. ☐ Fully implement Case Law Monitor for dispute prevention and social justice



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Assessment of the effectiveness of existing mechanisms

- ☐ The extension of agreements to non-parties remains controversial
- ☐ Social justice and slight economic adaptability remains a priority in collective bargaining and dispute resolution

Identify strategies to strengthen institutional integrity and support stable, constructive labour relations.

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- ☐ We need to strengthen institutions by building a sustainable ecosystem where both employers and employees feel secure because when institutions are weak, trust evaporates, leading to strikes, litigation and lost or low productivity.
- ☐ We need to enhance social dialogue which is a cornerstone of stability, forms of negotiations , consultations and exchange of information between parties.
- ☐ Tripartite cooperation (not crisis management)
- ☐ Bipartite – establishment of different sector committees ,and
- ☐ Early warning systems-create conflict maps to identify grievances before they are disputes and strikes

Strategies to strengthen institutional integrity and support stable, constructive labour relations ¹³

- ☐ Institutional capacity building both at the employer and organized labour (Council as the custodian of collective bargaining and benchmarking on best practices)
- ☐ Professionalizing mediation – avoid legal battles and to Alternative Dispute Resolution (process, mechanisms or model to enhance prevention)
- ☐ Data driven policy-strengthen data collection systems (union membership etc. (move to digitalization)
- ☐ Promoting” good faith”” collective bargaining
- ☐ Transparency in finances
- ☐ Incentivizing productivity outside monetary incentives
- ☐ Modernizing collective bargaining by enhancing online meetings and or system to stay relevant

Strategies to strengthen institutional integrity and support stable, constructive labour relations

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- ☐ Digital shift to data –driven negotiations(separate feelings)
- ☐ Hybrid bargaining spaces to increase frequency
- ☐ Performance tracking systems to be developed
- ☐ Online Dispute Resolution in order to enhance speed and accessibility
- ☐ Neutrality through Technology which will provide a “single source of truth eg: teams recording than hand notes
- ☐ Radical transparency e.g. Budget
- ☐ Secure digital tools to be used



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RECOMMENDATIONS

- ❑ It is recommended that the Plenary takes note of the presentation and engage.



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